

TENTATIVE RULINGS

DEPT C28

Judge Thomas S. McConville

May 26, 2026 at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5228. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C28 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C28 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5228 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1.	Hot Pepper, Inc. v. mMax Communications, Inc. 2022-01250772	Joseph T. Ergastolo, Esq., David H. Kono, Esq., and Wright, L'Estrange & Ergastolo's motions to be relieved as counsel of record for plaintiff/cross-defendant Hot Pepper, Inc., and cross-defendants XiaoLaJiao (Hong Kong) Technology Co. Ltd., Yuan Ning Sun, and Hot Pepper Mobile, Inc. are GRANTED, effective upon the filing of the proof of service of the signed orders upon the clients. Wright, L'Estrange & Ergastolo is ORDERED to serve each client with their respective signed order via both mail <u>and</u> email, within five days of this hearing. Jeffrey G. Huron, Esq. and Stinson LLP's motions to be relieved as counsel of record for cross-defendants XiaoLaJiao (Hong Kong) Technology Co. Ltd., Yuan Ning Sun, and Hot Pepper Mobile, Inc. are GRANTED, effective upon the filing of the proof of service of the signed orders upon the clients. Stinson LLP is ORDERED to serve each client with their respective signed order via both mail <u>and</u> email, within five days of this hearing. An order to show cause is set for June 26, 2026 at 9:00 a.m. in Department C28. At the hearing, the Court will dismiss without prejudice the complaint of plaintiff Hot Pepper, Inc. and strike the answer and enter default for cross-defendants Hot Pepper, Inc., XiaoLaJiao (Hong Kong) Technology Co. Ltd., and Hot Pepper Mobile, Inc. for their failure to appear through counsel unless they (1) substitute in new counsel before the hearing or (2) appear at the hearing and show good cause otherwise. (<i>CLD Construction, Inc. v. City of San Ramon</i> (2004) 120 Cal. App. 4th 1141, 1146 [holding that a corporation must appear through counsel]; <i>Van Gundy v. Camelot Resorts, Inc.</i> (1983) 152 Cal. App. 3d Supp. 29, 31-32 [court should enter default for corporation that fails to appear through counsel].) The trial date of June 8, 2026 is VACATED. A trial setting conference is scheduled for June 26, 2026 at 9:00 a.m. in Department C28.

[illegible]

